

25PR00770 Matter of The Yvonne Kelly Separate Property Revocable Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-20

Motion: Petition for Final Distribution and to Dispense with Notice Upon Declaration of Diligence

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Tentative Ruling: On the question of whether Rochelle Ann Rutherford's (Rochelle's) gift should fail, per this Court's October 13, 2025 Order, which is based on the trust terms applicable to this issue, the gift to Rochelle (10% of the remainder) fails if Rochelle does not complete a 60-day inpatient rehabilitation program for substance abuse disorder by May 25, 2026. The requirements of the trust created by the settlor are unequivocal and state:

"Rochelle Anne Rutherford shall attend an inpatient rehabilitation program for her substance abuse disorder. The program shall be a 60-day inpatient rehabilitation program. and she shall list Jason Kelly as her emergency contact and give the program permission to release her information to him, and she shall sign any releases needed to do so. Should Rochelle Anne Rutherford not have insurance for the program or funds to pay for such program, the Trust shall pay for such program. Upon proof of completion of such program, Rochelle Anne Rutherford shall be distributed 10% of the estate. Should these conditions not be met, she shall receive 0 (Zero) distribution from the Trust."

The material facts necessary to resolve the question before the Court are not in dispute. Rochelle was notified of the order months prior to the homicide in March 2026 to which she was a witness. She had ample and reasonable time to comply long prior to that date. The risk of delay in completion was solely hers to control. As such, she bears the burden of that risk. Her decision to wait until nearly the last possible opportunity to succeed, and her resulting untimely start at treatment, is solely her responsibility. Completion of a qualifying program would have required enrollment by March 26, 2026. There is no dispute she did not enroll in any program until April 10, 2026. She admits she did not strictly comply with the trust terms, and that she did not complete any program until June 8, 2026, which was two weeks late. The objector also admits that the program she attended was a 33-day substance abuse detox program, and 27 days of a sober living home program. This does not meet the settlor's requirements of a 60-day inpatient rehabilitation program. As to the failure of the trust to pay for a program, it was only required to pay for a program that complied with the requirements of the trust, or a 60-day inpatient rehabilitation program, and for which a release of information was signed. The objection provides no evidence that the program the trust did not fund qualified with either requirement.

In light of the above, Rochelle's gift fails. The Court acknowledges that this outcome is surely disappointing to Rochelle in light of the effort she did put into compliance, which treatment, while non-compliant, hopefully will provide its own benefit. However, it is the duty of a probate court to determine the intent of the settlor or maker of a trust and, when determined, to give such intent effect. Estate of Parrette (1985) 165 Cal.App.3d 157, 161. As to the equities, the Court observes that Rochelle's children and grandchildren will benefit in her place.

Therefore, the objection is overruled and the petition is GRANTED. The Court will sign the proposed order lodged April 15, 2026, but will strike proposed orders number 1 and 2, which relate to dispensation of notice.

On the issue of dispensing with notice to Rochelle, the issue is MOOT. Rochelle has generally appeared with respect to this petition, so no further notice to her is due. In re Poder's Estate (1969) 274 Cal.App.2d 786, 791–792. California Rule of Court, Rule 7.52 allows dispensation of notice with respect to a particular probate proceeding, not to dispense will all future notice requirements that might be due to a trust beneficiary. But future notice is also moot because Rochelle is no longer a trust beneficiary as her gift has failed due to her non-compliance with the condition pertaining to her gift, as discussed above.